

26STCP00857 26STCP00857

County: los-angeles

Division: Civil Law and Motion

Department: 731

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Case Number: 26STCP00857 Hearing Date: July 9, 2026 Dept: 731

[TENTATIVE] ORDER TAKING THE SPECIAL MOTION TO STRIKE OFF-CALENDAR

Background

Petitioner

Christosha McDonald alleges Respondent Marquita Barbers conducts online harassment and repeated defamatory statements via YouTube accusing Petitioner of engaging in prostitution, threats of identification of Petitioners employer, and the playing of "private audio recordings."

On March 3, 2026,

Barbers, a Texas resident in pro per, filed a petition for civil harassment against McDonald for Defamation – Libel and Slander, Defamation Per Se; Intentional Infliction of Emotional Distress, Civil Harassment, and Injunctive Relief. On March 24, 2026, McDonald in pro per filed a first amended petition.

Respondent in pro

per filed a special motion to strike the "second amended complaint." Respondent moves on grounds that the creation and publication of YouTube videos constitute protected free speech not subject to defamation. Respondent cites to purported orders in the Department 86 of the writs and receivers court whereby two applications for injunction were purportedly denied on grounds of prior restraint, thereby establishing a res judicata basis for a grant of the motion as well.

Petitioner in

opposition contends the subject content constitutes an unprotected illegal act.

Defamation Per Se based on claims of prostitution constitute factually false malicious statements. Petitioner denies any res judicata defense. Petitioner finally cites to “evidence of joint enterprise and illegal doxing” (allegations in the non-filed second amended petition) as grounds for denial.

Respondent in reply challenges the introduction of the “conspiracy” allegations. Respondent notes the lack of any challenge regarding the showing of protected activity. Respondent next challenges the lack of any showing of a probability of prevailing on the merits.

Self-Represented Parties

“Although self-represented litigants are not entitled to special treatment, they are entitled to the same treatment as a represented party.

... ‘Trial judges must acknowledge that in propria persona litigants often do not have an attorney’s level of knowledge about the legal system and are more prone to misunderstanding the court’s requirements.’ (Citation). When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court...

[S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson.” (Petrosyan v. Prince Corp. (2013) 223 Cal.App.4th 587, 594.)

First and Second Amended Petitions/Complaints

On May 26, 2026, the court “received” the second amended “complaint.” The court declined to file the second amended complaint due to the lack of an order granting leave to amend. Thus, the court finds any motion directed to the second amended petition (complaint) inapplicable. The court cannot consider a non-operative pleading. “An amended complaint ‘supersedes the original and furnishes the sole basis for the cause of action. [Citations.] The original complaint is dropped out of the case and ceases to have any effect as a pleading, or as a basis for a judgment.’” (Anmaco, Inc. v. Bohlken (1993) 13 Cal.App.4th 891, 901; see Roberts v.

Los Angeles County Bar Assn. (2003) 105 Cal.App.4th 604, 611-613.)

The court declines to consider any challenge
to the first amended petition and issue a potential advisory opinion.

The
motion is therefore taken off-calendar. Petitioner may move for leave to file
the second amended petition, which will restart the 60-day deadline for any
special motion to strike upon filing of the operative pleading, if granted.. If
the court denies leave to amend, Respondent may file a motion for leave to file
a special motion to strike the first amended pleading after the lapse of the 60
day filing deadline.

The motion is taken off-calendar.

Respondent/Defendant is ordered to give notice.